

Table of Contents

DECLARATION.....	VII
ACKNOWLEDGEMENT	VIII
PHD COURSEWORK CERTIFICATE.....	IX
PRE-SUBMISSION SEMINAR CERTIFICATE	X
CERTIFICATE OF PLAGIARISM TEST.....	XI
SUPERVISOR CERTIFICATE.....	XII
LIST OF ABBREVIATIONS	XIII
LIST OF CASES	XX
LIST OF STATUTES.....	XXI
ABSTRACT OF THE THESIS	XXIII
STATEMENT OF PROBLEM.....	XXVII
RESEARCH OBJECTIVES	XXVIII
LITERATURE REVIEW	XXIX
<i>Books.....</i>	<i>xxix</i>
<i>Reports</i>	<i>xxxiv</i>
<i>Research Papers and Articles</i>	<i>xxxviii</i>
RESEARCH GAP	XLIII
RESEARCH QUESTIONS.....	XLV
HYPOTHESES.....	XLV
RESEARCH METHODOLOGY	XLVI
SCOPE AND LIMITATIONS.....	XLVII
THESIS OUTLINE	XLVIII
KEY FINDINGS OF THE STUDY	LIII
TESTING THE HYPOTHESIS	LIX
SUGGESTIONS & RECOMMENDATIONS.....	LXIII
CHAPTER 1	1
INTRODUCTION	1
1.1 STATEMENT OF PROBLEM	5
1.2 RESEARCH OBJECTIVES.....	6
1.3 LITERATURE REVIEW.....	7

1.3.1 Books.....	7
1.3.2 Reports	12
1.3.3 Research Papers and Articles.....	16
1.4 RESEARCH GAP	21
1.5 RESEARCH QUESTIONS.....	23
1.6 HYPOTHESES	23
1.7 RESEARCH METHODOLOGY	24
1.8 SCOPE AND LIMITATIONS.....	25
1.9 CHAPTERISATION SCHEME.....	26
CHAPTER 2	33
CONCEPTUALIZING GREENWASHING AND CORPORATE GOVERNANCE INTERVENTION..	33
2.1 THE EVOLUTION AND FOUNDATIONAL DEFINITIONS OF GREENWASHING	33
2.1.1 Genesis of the Term.....	33
2.1.2 Defining Greenwashing: Core Elements and Conceptual Nuances	34
2.1.3 Evolution and Contemporary Frameworks.....	35
2.2 THEORETICAL FRAMEWORKS FOR UNDERSTANDING GREENWASHING.....	41
2.2.1 Legitimacy Theory and Symbolic Management.....	41
2.2.2 Stakeholder Theory and External Pressures.....	42
2.2.3 Decoupling Theory and the Mechanism of Greenwashing	43
2.2.4 Institutional Theory and the Pressure to look responsible.....	44
2.3 TYPOLOGY OF GREENWASHING	45
2.3.1 Product-Level Greenwashing.....	45
2.3.2 Corporate-Level Greenwashing (Organisational Image Management).....	46
2.3.3 ESG Greenwashing (Sustainability Reporting and Financial Sector).....	49
2.4 CONSEQUENCES OF GREENWASHING	51
2.4.1 Environmental and Societal Harm.....	52
2.4.2 Economic and Market Distortions.....	52
2.4.3 Erosion of Trust and Legitimacy.....	53
2.5 EVIDENCE OF IMPACT OF GREENWASHING FROM SECONDARY DATA.....	53
2.5.1 India.....	54
2.5.2 Abroad.....	58
2.6 THE CASE FOR CORPORATE GOVERNANCE INTERVENTION	61
2.6.1 The Consumer Protection Act, 2019.....	61
2.6.2 CCPA Guidelines for Prevention and Regulation of Greenwashing, 2024.....	62
2.6.3 Structural Limitations: A Doctrinal Analysis.....	64
2.6.4 Greenwashing as Corporate Governance Failure.....	66

2.6.5 <i>The Doctrinal Framework for Upcoming Analysis</i>	68
2.7 CONCLUSION	68
CHAPTER 3	71
GREENWASHING: CORPORATE RESPONSIBILITY AND ACCOUNTABILITY	71
3.1 JURISPRUDENTIAL AND THEORETICAL FRAMEWORKS OF CORPORATE RESPONSIBILITY	71
3.1.1 <i>Fiction Theory</i>	71
3.1.2 <i>Realist Theory</i>	72
3.1.3 <i>Purpose Theory</i>	73
3.1.4 <i>Stakeholder Theory</i>	73
3.1.5 <i>Contractual Theory</i>	74
3.1.6 <i>Synthesis</i>	75
3.2 GENESIS AND EVOLUTION OF CORPORATE RESPONSIBILITY IN SOCIETY	75
3.2.1 <i>Ancient Origins and Medieval Foundations</i>	75
3.2.2 <i>Early Modern Chartered Companies</i>	76
3.2.3 <i>The Industrial Era</i>	77
3.2.4 <i>Conceptualization, Formalization and Regulatory Constraint (1930s–1970s)</i>	78
3.3 JURISPRUDENTIAL ANALYSIS OF CORPORATE RESPONSIBILITY THROUGH HOHFELDIAN PRINCIPLES	81
3.3.1 <i>Ambiguity of Corporate Purpose and utility of Hohfeldian Analysis</i>	81
3.3.2 <i>Decomposing Corporate Responsibility and Liability</i>	83
3.3.3 <i>Designing Responsible Corporate Governance</i>	85
3.3.4 <i>Direct relevance to Greenwashing</i>	87
3.4 PRINCIPAL-AGENT THEORY AND INFORMATION ASYMMETRY	89
3.5 FROM VOLUNTARY CSR TO MANDATORY ESG: THE INDIAN TRANSITION	91
3.5.1 <i>Section 135 and the Mandatory CSR Regime</i>	91
3.5.2 <i>SEBI's BRSR Framework: Evolution and Requirements</i>	93
3.5.3 <i>Assurance Gaps: Limited vs. Reasonable Assurance</i>	95
3.5.4 <i>Critical Assessment: Has the Transition Enhanced Accountability?</i>	97
3.5.5 <i>The Accountability Vacuum: Responsibility versus Accountability</i>	98
3.6 FIDUCIARY DUTIES AND ENVIRONMENTAL ACCOUNTABILITY UNDER INDIAN LAW	100
3.6.1 <i>The Environmental Protection Mandate in Companies Act, 2013</i>	102
3.6.2 <i>Interpreting “Protection of Environment” as a Director’s Duty</i>	103
3.6.3 <i>Greenwashing as a Breach of Fiduciary Duty</i>	104
3.6.4 <i>The Absence of Specific Penal Provisions for Environmental Misrepresentation</i>	105
3.6.5 <i>The M.K. Ranjitsinh Judgment: Constitutional Foundation for Director Environmental Accountability</i>	107
3.6.6 <i>Summary of Doctrinal Findings on Section 166(2) (Lex Lata)</i>	108

3.7 CONCLUSION	109
CHAPTER 4	112
PREVENTION OF GREENWASHING: INTERNATIONAL PERSPECTIVE.....	112
4.1 INTERNATIONAL STANDARDS AND GLOBAL NORMATIVE FRAMEWORKS.....	113
4.1.1 ISO 14021 and Technical Substantiation.....	114
4.1.2 UN High-Level Expert Group and the “Integrity Matters” Report.....	115
4.1.3 IOSCO Report on Supervisory Practices Related to Greenwashing.....	117
4.1.4 Comparative Analytical Framework.....	117
4.2 THE EUROPEAN UNION: CONVERGENT HARD-LAW FRAMEWORK	119
4.2.1 The Corporate Sustainability Reporting Directive (CSRD)	119
4.2.2 The Green Claims Directive (Proposed)	121
4.2.3 The Empowering Consumers for the Green Transition Directive (ECGT Directive).....	123
4.2.4 EU Enforcement Practice	124
4.3 THE UNITED STATES: FRAGMENTED FRAMEWORK UNDER POLITICAL PRESSURE.....	126
4.3.1 SEC Climate Disclosure Rules: Adopted and Stayed	127
4.3.2 FTC Green Guides: Enforcement Without Binding Force	128
4.3.3 Private Litigation: Emerging Greenwashing Claims.....	130
4.4 THE UNITED KINGDOM: PRESCRIPTIVE RULE WITH UNCERTAIN ENFORCEMENT TRAJECTORY	130
4.4.1 The FCA Anti-Greenwashing Rule (May 2024)	131
4.4.2 Competition and Markets Authority (CMA) Powers.....	132
4.4.3 The UK Green Claims Code.....	133
4.5 CANADA: LEGISLATIVE INNOVATION WITH IMPLEMENTATION AMBIGUITY	134
4.5.1 Bill C-59 Amendments to the Competition Act (June 2024)	134
4.5.2 Competition Bureau Guidelines (June 2025)	135
4.6 AUSTRALIA: ASIC-LED SURVEILLANCE WITH MANDATORY REGIME IN PREPARATION	136
4.6.1 ASIC’s Greenwashing Interventions (2023-2024)	136
4.6.2 Mandatory Climate Reporting Regime (In Preparation).....	137
4.7 DEVELOPING COUNTRY FRAMEWORKS: HETEROGENEOUS MATURITY	138
4.7.1 Latin America: Emerging Stringency.....	138
4.7.2 Southeast Asia: Taxonomies and Regional Convergence.....	141
4.7.3 Africa: South Africa’s Integrated Governance.....	142
4.7.4 India: Preview	142
4.8 LANDMARK ENFORCEMENT ACTIONS AND JUDICIAL REASONING.....	144
4.8.1 Volkswagen Emissions Scandal: Foundational Precedent.....	145
4.8.2 Daimler Mercedes Emissions Settlement (2022)	145
4.8.3 Shell Netherlands: Corporate Climate Responsibility (2021)	145

4.8.4 Fossilvrij v. KLM: The “Overly Rosy Picture” (2024)	147
4.8.5 JBS USA: The Net-Zero Plan Challenge (2024)	148
4.8.6 ASIC v. Vanguard: The “Green Fund” Exclusion.....	148
4.8.7 ASIC v. Mercer Superannuation (2024)	148
4.8.8 P&G Charmin Greenwashing Claim (2025).....	149
4.9 WHAT THE INTERNATIONAL COMPARISON REVEALS.....	150
<i>Consolidated Comparative Table</i>	150
4.9.1 Research Gap 1: Board-Level Accountability for Environmental Claims.....	152
4.9.2 Research Gap 2: Regulatory Fragmentation as Structural Cause.....	153
4.9.3 Research Gap 3: The Verification Gap (Assurance Models)	153
4.9.4 Research Gap 4: Evolving Morphology (Futurewashing, Offsets)	154
4.9.5 Research Gap 5: Enforcement Record Analysis	154
4.10 CROSS-JURISDICTIONAL LESSONS AND EMERGING BEST PRACTICES	156
4.10.1 Assurance as Credibility Tool.....	156
4.10.2 Director Accountability as Governance Tool.....	157
4.10.3 Substantiation Standards: From Aspiration to Enforcement.....	160
4.10.4 Private Enforcement as Complement to Agency Action.....	160
4.10.5 The “Greenhushing” Risk.....	161
4.10.6 Best Practices for State Regulation.....	161
4.10.7 Best Practices for Corporate Compliance.....	162
4.11 CONCLUSION	163
CHAPTER 5	166
INDIAN REGULATORY ECOSYSTEM TO PREVENT GREENWASHING	166
5.1 CONSTITUTIONAL BEDROCK	166
5.2 THE REGULATORY ECOSYSTEM FOR GREENWASHING.....	171
5.2.1 Pillar 1: Consumer Protection Regime (Product & Advertising Accountability)	172
5.2.2 Pillar 2: Securities & Finance Regime (Capital Market Accountability)	180
5.2.3 Pillar 3: Corporate Governance Regime (Board & MCA Accountability)	185
5.3 BROADER ENVIRONMENTAL REGULATION AND SECTORAL STANDARDS	198
5.3.1 Environment (Protection) Act, 1986 and Delegated Rules	198
5.3.2 The National Green Tribunal: Remedial Powers and Jurisdictional Limitations.....	199
5.3.3 Food Safety and Standards Authority of India (FSSAI): Sectoral Regulation of Environmental Claims in the Food Industry.....	202
5.3.4 BIS Ecomark Certification Scheme	205
5.3.5 Intellectual Property and Labeling.....	206
5.4 CRITICAL ANALYSIS OF REGULATORY ARCHITECTURE AND SYSTEMIC GAPS	207

5.4.1 Definitional and Terminological Inconsistency.....	207
5.4.2 Structural Fragmentation and Jurisdictional Ambiguity.....	211
5.4.3 The Penalty Arbitrage: Economic Incentives for Greenwashing	218
5.4.4 Regulatory Backsliding and Capture.....	222
5.4.5 Enforcement and Surveillance Limitations.....	225
5.5 CONCLUSION	228
CHAPTER 6.....	230
CONCLUSION.....	230
6.1 KEY FINDINGS OF THE STUDY	230
6.2 TESTING THE HYPOTHESIS.....	237
6.3 SUGGESTIONS & RECOMMENDATIONS	240
BIBLIOGRAPHY	252
A. BOOKS	252
B. REPORTS.....	253
C. STATUTES AND REGULATIONS.....	255
<i>Indian Legislation.....</i>	<i>255</i>
<i>Indian Regulations and Guidelines</i>	<i>255</i>
<i>European Union Legislation</i>	<i>257</i>
<i>United Kingdom Legislation.....</i>	<i>257</i>
<i>United States Legislation and Rules</i>	<i>257</i>
<i>Australian Legislation</i>	<i>258</i>
<i>Brazilian Legislation.....</i>	<i>258</i>
D. RESEARCH PAPERS AND JOURNAL ARTICLES	258
E. CASE LAWS	267
<i>Indian Cases</i>	<i>267</i>
<i>International Cases.....</i>	<i>267</i>
F. OTHER WEBSITES AND ONLINE SOURCES.....	268
APPENDIX-I	276
CERTIFICATES OF SEMINARS AND PUBLISHED PAPERS.....	276
APPENDIX-II	281
PUBLISHED PAPERS	281